6. The KNCHR continues to receive an alarming number of complaints of ongoing disappearances and extra-judicial killings attributed to the police and urges the government to urgently intervene to stop these human rights violations.

DETAILS OF FINDINGS OF ALLEGED EXECUTIONS, TORTURE AND OTHER VIOLATIONS

EYEWITNESS ACCOUNTS

The KNCHR has since July 2007, received witness testimonies where relatives, friends of the victims as well as independent witnesses gave accounts of arrests by police officers known to them or others seen driving police vehicles. Witness accounts indicate that soon after the arrests, some the victims disappear without a trace while others are found dead in mortuaries. The KNCHR has documented these accounts from the witnesses as enumerated below:

Benson Mwangi Waraga (55 years) a tailor along River Road, Nairobi was found dead at City mortuary on 19/5/07, two days after he was arrested by police after a shoot-out near his workplace. The shoot-out between the police and gangsters occurred on 17/5/07 at around 1.00 pm during which three alleged gangsters and a police officer were killed. The incident was prominently covered in both electronic and print media and Mwangi was captured being bundled into the police vehicle (see below). Two eyewitnesses to the incident recorded their statements with KNCHR. They gave an account of how, while working in the deceased tailoring shop in River Road, Githaku House, policemen raided their building at around 2.30pm on 1/5/07.The said police were allegedly looking for thieves in the building. One of the police officers ordered the two eyewitnesses and the deceased to lie down and after about 15 minutes, the three were bundled in a police Land Rover where 15 other suspects had already been bundled. The group was taken to Kamukunji Police Station and was counted to be 18 in number. The eyewitnesses further report that while awaiting to be booked at the Occurrence Book, (which they eventually were not), Waraga was ordered by one of the policemen to report to the Crime Office upstairs. The rest were released the following day,18/5/07. The KNCHR further received reports from Waraga's family that upon receiving the report of his arrest, Waraga's brother went to Kamukunj Police Station on 19/5/07 to see him but he was denied access since it was after 6.00 pm. The next day at 9.00 am, he went back to Kamukunji police station but could not trace Waraga. Together with other family members, they fruitlessly searched for him in all police stations within Nairobi. The following day (19/5/07), they went to City Mortuary where they found Mwangi's